



A COMMUNITY OF CHOICE

Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

September 20, 2016

City Council
City of Cheyenne
Cheyenne, WY 82001

Re: Amendments to Southwest Industrial Park Annexation (Agenda Item #13)

The following attachments were submitted due to a recent change in ownership of a parcel currently being annexed into the City. The parcel is located adjacent to Southwest Drive, to the south of 5th Street. The new owner is C. H. Yarber Crane Services. The purpose of the ownership change is to allow C.H. Yarber to be the owner of record of all land within an expedited plat (which is being processed concurrently).

The revised ordinance indicates the change in ownership, and revises the entitlement to match the attached map submitted to the Development Department.

The attached map has been submitted to the Development Office to resolve conditions recommended by staff. The revised map fulfills all conditions and staff recommends this item be approved without conditions.

Regards,

Eric Hammer
Planner

CC: File

ORDINANCE NO. _____

Approved as to
form only:

Orkh
Date: 9/20/16

ENTITLED: "ANNEXING TO THE CITY OF CHEYENNE, WYOMING, A PARCEL OF LAND OF APPROXIMATELY .58 ACRES OF LAND SITUATED IN THE NW¼ OF SECTION 12, T.13N., R.67W., OF THE 6TH P.M., LARAMIE COUNTY, WYOMING."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That C.H. Yarber Crane Services, owner of a parcel to be known as the Southwest Industrial Park Annexation being situated in the NW¼ of Section 12, T.13N., R.67W., of the 6th P.M., Laramie County, Wyoming have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and
- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Jeffrey B. Jones, a Professional Land Surveyor, registered in the State of Wyoming, PLS Number 5910; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned LI – Light Industrial– by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

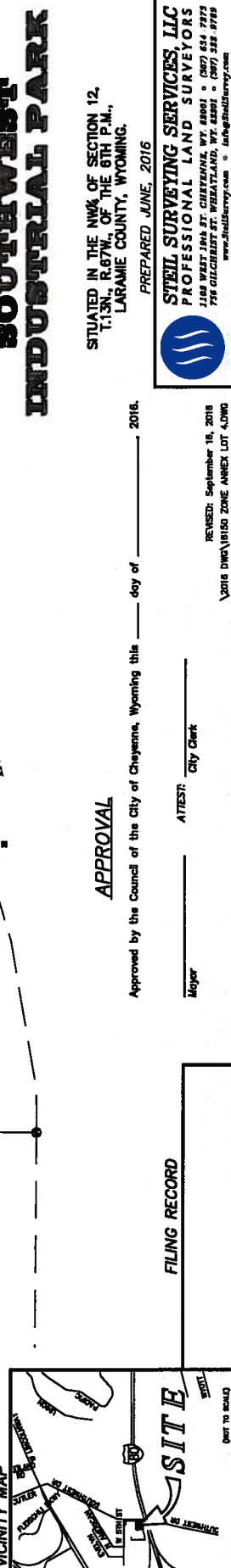
THIRD AND FINAL READING: _____

RICHARD L. KAYSEN, MAYOR

(SEAL)

CAROL INTLEKOFER, CITY CLERK

published: _____



STELL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS

1100 WEST 19th ST. CHEYENNE, WY 82001 • (307) 654-7973
756 GILCHRIST ST. WHEATLAND, WY 83091 • (307) 588-9789
www.StellSurvey.com • info@StellSurvey.com

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